

23STCV28456 23STCV28456

County: los-angeles

Division: Civil Law and Motion

Department: F46

Hearing date: 2026-08-14

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=CHA%2CF46%2C08%2F14%2F2026

Source SHA-256: c0015b2ceebf04dc893be9a780ca67c6322b8511306b16903be1fd2a11008d01

Case Number: 23STCV28456 Hearing Date: August 14, 2026 Dept: F46

The Motion to Bifurcate is DENIED WITHOUT PREJUDICE to consideration of bifurcation during the pretrial proceedings.

Defendant/Cross-Complainant moves pursuant to Code of Civil Procedure sections 598 and 1048(b) to bifurcate the trial into separate liability and damages phases. The other defendants have filed notice that they do not oppose the motion. Plaintiff has not filed an opposition.

Code of Civil Procedure section 598 authorizes the Court, when the convenience of witnesses, the ends of justice, or the economy and efficiency of handling the litigation would be promoted, to order that the trial of an issue or part of an issue precede the trial of another issue. Section 1048(b) similarly authorizes separate trials in furtherance of convenience, to avoid prejudice, or when separate trials will be conducive to expedition and economy. Whether bifurcation is appropriate, and the manner in which the issues should be sequenced for trial, are matters committed to the Court's discretion.

The Court has considered Defendant's specific showing. Defendant represents that the liability portion of the trial would be relatively brief and would involve approximately three to five experts, whereas the damages presentation could require a week or more and involve numerous treating physicians and retained experts. Defendant estimates that the damages phase could involve approximately 20 to 25 experts among all parties. Defendant therefore contends that a defense verdict on liability could eliminate the need for a substantial and resource-intensive damages presentation.

The Court recognizes that these circumstances present a

legitimate basis for considering bifurcation and that bifurcation could result in substantial savings of trial time and resources if Defendants prevail on liability. The Court does not reject Defendant's request on its merits, nor does the Court apply a categorical preference for unified trials.

Rather, the Court concludes that the determination is more appropriately made during the pretrial proceedings, before the jury is called, when the Court will be in a better position to evaluate the actual structure of the trial. At that time, the Court can consider the anticipated testimony and witness sequencing, the degree of overlap between liability, causation, and damages evidence, the effect of the Court's rulings on motions in limine and preliminary evidentiary matters, the practical consequences of conducting separate phases, and whether bifurcation will in fact promote the convenience of witnesses, the ends of justice, and the economy and efficiency of the trial.

Defendant's present showing that the damages phase is expected to be substantially longer and more expert-intensive than the liability phase is relevant to that determination, but the Court concludes that the exercise of its discretion will be better informed after the remaining pretrial issues have been developed and addressed.

Accordingly, Defendant/Cross-Complainant's Motion to Bifurcate is DENIED WITHOUT PREJUDICE. The Court will permit the issue of bifurcation to be renewed and considered during the pretrial proceedings, before the jury is called, after the Court has addressed the motions in limine and other preliminary evidentiary and trial-management matters relevant to the appropriate sequencing of the trial.